

		for the trial court. (<i>Ibid.</i>) “[B]ecause the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (<i>Ibid.</i>, internal citations omitted.) “An item not specifically allowable as costs under Code of Civil Procedure section 1033.5, subdivision (a), and not specifically prohibited under subdivision (b), may be allowed as costs at the discretion of the trial court if reasonably necessary to the conduct of the litigation. [Citation.]” (<i>Landwatch San Luis Obispo County v. Cambria Community Services District</i> (2018) 25 Cal.App.5th 638, 645-646.) The requirement that claimed costs be reasonable does not necessarily require that the costs be the very lowest. (<i>Id.</i> at p.646.) Fees for the electronic filing or service of documents through an electronic filing service provider if the court requires or orders electronic filing or service of documents are expressly allowed as costs. (Code Civ. Proc. § 1033.5(a)(14).) Orange County Superior Court, Local Rule 352 states, in part: “Pursuant to Code of Civil Procedure section 1010.6(d), documents filed by represented parties in all limited, unlimited, and complex civil actions must be filed electronically and allow for service electronically, unless the Court excuses parties from doing so.” The e-Filing Charge and Administration Charge are expressly allowable and are reasonable. In addition, the “Convenience Fee” for paying by a credit card is not expressly disallowed and appears reasonably necessary. The Court GRANTS costs and expenses in the amount of \$730.72. Plaintiff to give notice.
10.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Special Interrogatories 5. Motion to Compel Answers to Special Interrogatories 6. Motion to Compel Production 7. Motion to Compel Production Defendant Hill Commercial Investments, Inc. (“Defendant”) moves for an order: (1) compelling Plaintiffs Darwin Bicknell and Lissa Bareno (“Plaintiffs”) to serve responses to Defendant’s first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; and (2) imposing monetary sanctions against Plaintiffs’ counsel, Steven Tamer. Code of Civil Procedure sections 2030.290 and 2031.300 state that if a party to whom interrogatories or a demand for inspection “fails to serve a timely response to it,” the party waives any and all objections and the propounding party may move for an order compelling responses to the interrogatory or demand. (Code Civ. Proc., §§ 2030.290(a)-(b), 2031.300(a)-(b).) These sections also state “the court shall impose a monetary sanction . . . against any party, person or attorney who unsuccessfully makes or opposes a motion . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) Defendant electronically served the written discovery on Plaintiffs on September 22, 2025. (Declarations of Khoa D. Nguyen, ¶ 5.) Responses were due October 24, 2025. As of the October 27, 2025 filing of the motions, Plaintiffs had not served any responses. (<i>Id.</i>, ¶ 6.)

		In light of the above, Defendant’s unopposed Motions are GRANTED. Plaintiffs are ORDERED to serve verified responses, without objections, within 20 days. The Court finds no substantial justification for Plaintiffs’ failure to serve responses. Thus, the Court GRANTS Defendant monetary sanctions against Plaintiffs’ counsel, Steven Tamer, in the reduced amount of \$1,200 (3 hrs at \$400/hr), to <u>be paid within 30 days</u> to Defendant’s counsel. Plaintiff to give notice.
12.	30-2024-01390718 Chavez vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication Defendant General Motors LLC (“Defendant”) filed a motion for summary judgment as to all five causes of action alleged in the Complaint, which includes the: (1) first cause of action for violation of Civil Code section 1793.2(d), (2) second cause of action for violation of Civil Code section 1793.2(b), (3) third cause of action for violation of Civil Code section 1793.2(a)(3), (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fifth cause of action for violation of the Magnuson-Moss Warranty Act. Plaintiff Ernesto Everardo Chavez (“Plaintiff”) opposed the motion. The Motion is CONTINUED to July 2, 2026 at 1:30p.m. in C34. The Court is <i>unable to read the Exhibit A to the motion for summary judgment</i>, which is the Dealer’s Reassignment of Title and Retail Purchase Agreement showing the sale of a used model 2020 Chevrolet Silverado 1500, VIN: 3GCPYBEH0LG401310 (the “Silverado”), by Vroom, located in Texas (as Seller-Creditor) to Ernesto Everrado Chavez (as Buyer) on January 22, 2021. <u>Defendant is ORDERED to file a more legible copy of this agreement.</u> <i>No further briefing.</i> Defendant to give notice.